

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Filed on

-----X
QUWAND McCONNELL,

Index No.

Plaintiff,

Plaintiff designates Kings
County as place of trial

-against-

SUMMONS

CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, POLICE OFFICER SCOTT
CARLEY – Shield No. 29078, SERGEANT
KEITH HOCKADAY – Shield No. 986, POLICE
OFFICER KEVIN ULRICH – Shield No. 16881,
POLICE OFFICER AKIL GUY – Shield No.
04945 and POLICE OFFICERS “JOHN DOE 1-
8” first names “JOHN” and last names “DOE”
being fictitious and unknown at the present time,

The basis of venue is the place
of the occurrence of the tort.

Plaintiff resides at:
585 Blake Avenue, Apt. 1J
Brooklyn, NY 11207

County of Kings

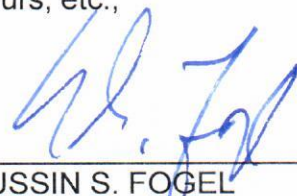
Defendants.
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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer, or, if the Complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Amended Complaint.

Dated: New York, New York
August 1, 2016

Yours, etc.,



NUSSIN S. FOGEL
Attorney for Plaintiff
299 Broadway - Suite 620
New York, New York 10007
(212) 385-1122

Defendants' Addresses:

CITY OF NEW YORK
1 Centre Street
New York, NY 10007

NEW YORK POLICE DEPARTMENT
One Police Plaza
New York, NY 10007

POLICE OFFICER SCOTT CARLEY – Shield No. 29078
c/o NEW YORK POLICE DEPARTMENT
Patrol Borough Brooklyn North
179 Wilson Avenue
Brooklyn, NY 11237

SERGEANT KEITH HOCKADAY – Shield No. 986
c/o NEW YORK POLICE DEPARTMENT
Strategic Response Group 2
1 Police Plaza,
New York, NY 10038

POLICE OFFICER KEVIN ULRICH – Shield No. 16881
c/o NEW YORK POLICE DEPARTMENT
Seventy-Fifth (75th) Precinct
1000 Sutter Avenue
Brooklyn, NY 11208

POLICE OFFICER AKIL GUY – Shield No. 04945
c/o NEW YORK POLICE DEPARTMENT
Seventy-Fifth (75th) Precinct
1000 Sutter Avenue
Brooklyn, NY 11208

POLICE OFFICERS "JOHN DOE 1-8"
c/o NEW YORK POLICE DEPARTMENT
1 Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
QUWAND McCONNELL,

Plaintiff,

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, POLICE OFFICER SCOTT
CARLEY – Shield No. 29078, SERGEANT KEITH
HOCKADAY – Shield No. 986, POLICE OFFICER
KEVIN ULRICH – Shield No. 16881, POLICE
OFFICER AKIL GUY – Shield No. 04945 and POLICE
OFFICERS “JOHN DOE 1-8” first names “JOHN” and
last names “DOE” being fictitious and unknown at the
present time,

Defendants.
-----X

Plaintiff, QUWAND McCONNELL, for his Verified Complaint by his attorney,
NUSSIN S. FOGEL, respectfully alleges as follows:

1. That, at all times hereinafter mentioned, plaintiff herein was and still is a resident of the County of Kings, City and State of New York.
2. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, was and still is a municipal corporation duly organized under the laws of the State of New York.
3. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, was and still is a municipal agency of defendant, CITY OF NEW YORK.
4. That, at all times hereinafter mentioned, defendant, POLICE OFFICER SCOTT CARLEY – Shield No. 29078, was and still is an employee of defendant, CITY OF NEW YORK.

5. That, at all times hereinafter mentioned, defendant, POLICE OFFICER SCOTT CARLEY – Shield No. 29078, was and still is an employee of defendant, NEW YORK POLICE DEPARTMENT.

6. That, at all times hereinafter mentioned, defendant, SERGEANT KEITH HOCKADAY – Shield No. 986, was and still is an employee of defendant, CITY OF NEW YORK.

7. That, at all times hereinafter mentioned, defendant, SERGEANT KEITH HOCKADAY – Shield No. 986, was and still is an employee of defendant, NEW YORK POLICE DEPARTMENT.

8. That, at all times hereinafter mentioned, defendant, POLICE OFFICER KEVIN ULRICH – Shield No. 16881, was and still is an employee of defendant, CITY OF NEW YORK.

9. That, at all times hereinafter mentioned, defendant, POLICE OFFICER KEVIN ULRICH – Shield No. 16881, was and still is an employee of defendant, NEW YORK POLICE DEPARTMENT.

10. That, at all times hereinafter mentioned, defendant, POLICE OFFICER AKIL GUY – Shield No. 04945, was and still is an employee of defendant, CITY OF NEW YORK

11. That, at all times hereinafter mentioned, defendant, POLICE OFFICER AKIL GUY – Shield No. 04945, was and still is an employee of defendant, NEW YORK POLICE DEPARTMENT

12. That, at all times hereinafter mentioned, defendant, POLICE OFFICERS “JOHN DOE 1-8” first names “JOHN” and last names “DOE” being fictitious and unknown at the present time, were and still are employees of defendant, CITY OF NEW YORK

13. That, at all times hereinafter mentioned, defendant, POLICE OFFICERS "JOHN DOE 1-8" first names "JOHN" and last names "DOE" being fictitious and unknown at the present time, were and still are employees of defendant, NEW YORK POLICE DEPARTMENT

14. That, plaintiff herein has complied with all of the conditions precedent to the bringing of the within action and more particularly, on or about the 11th day of June, 2015, and within ninety (90) days after the occurrence set forth herein, plaintiff duly served a written Notice of Claim upon the defendants herein, pursuant to law, and was assigned claim number 2015PI017505; that, more than thirty (30) days have elapsed since said Notice of Claim has been served; that said claims remains unadjusted and defendants herein have failed and refused to make any adjustments thereto; that the within action has been commenced within one year and ninety days of the date of the occurrence and that defendants conducted a statutory hearing relating to the claims made therein on August 1, 2016.

15. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, owned the Seventy-Fifth (75th) Precinct of the New York Police Department located at 1000 Sutter Avenue, Brooklyn, NY, in the County of Kings, City and State of New York.

16. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, owned the Seventy-Fifth (75th) Precinct of the New York Police Department located at 1000 Sutter Avenue, Brooklyn, NY, in the County of Kings, City and State of New York.

17. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, operated the Seventy-Fifth (75th) Precinct of the New York Police Department located at

1000 Sutter Avenue, Brooklyn, NY, in the County of Kings, City and State of New York.

18. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, operated the Seventy-Fifth (75th) Precinct of the New York Police Department located at 1000 Sutter Avenue, Brooklyn, NY, in the County of Kings, City and State of New York.

19. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, controlled the Seventy-Fifth (75th) Precinct of the New York Police Department located at 1000 Sutter Avenue, Brooklyn, NY, in the County of Kings, City and State of New York.

20. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, controlled the Seventy-Fifth (75th) Precinct of the New York Police Department located at 1000 Sutter Avenue, Brooklyn, NY, in the County of Kings, City and State of New York.

21. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, supervised the Seventy-Fifth (75th) Precinct of the New York Police Department located at 1000 Sutter Avenue, Brooklyn, NY, in the County of Kings, City and State of New York.

22. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, supervised the Seventy-Fifth (75th) Precinct of the New York Police Department located at 1000 Sutter Avenue, Brooklyn, NY, in the County of Kings, City and State of New York.

23. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, owned the Kings County Central Booking Facility located at 120 Schermerhorn Street, County of Kings, City and State of New York.

24. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE

DEPARTMENT, owned the Kings County Central Booking Facility located at 120 Schermerhorn Street, County of Kings, City and State of New York.

25. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, operated the Kings County Central Booking Facility located at 120 Schermerhorn Street, County of Kings, City and State of New York.

26. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, operated the Kings County Central Booking Facility located at 120 Schermerhorn Street, County of Kings, City and State of New York.

27. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, controlled the Kings County Central Booking Facility located at 120 Schermerhorn Street, County of Kings, City and State of New York.

28. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, controlled the Kings County Central Booking Facility located at 120 Schermerhorn Street, County of Kings, City and State of New York.

29. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, supervised the Kings County Central Booking Facility located at 120 Schermerhorn Street, County of Kings, City and State of New York.

30. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, supervised the Kings County Central Booking Facility located at 120 Schermerhorn Street, County of Kings, City and State of New York..

31. That, on or about May 7, 2015 at approximately 6:30 p.m. plaintiff herein was lawfully within the rear of 340 Georgia Avenue, in the County of Kings, City and State of New York.

32. That, on or about May 7, 2015 at approximately 6:30 p.m. plaintiff herein was unlawfully stopped in the rear of 340 Georgia Avenue, in the County of Kings, City and State of New York, a premise plaintiff herein was lawfully within, by defendants, POLICE OFFICER SCOTT CARLEY – Shield No. 29078, SERGEANT KEITH HOCKADAY – Shield No. 986, POLICE OFFICER KEVIN ULRICH – Shield No. 16881, POLICE OFFICER AKIL GUY – Shield No. 04945 and POLICE OFFICERS “JOHN DOE 1-8” first names “JOHN” and last names “DOE” being fictitious and unknown at the present time.

33. That, on or about May 7, 2015 at approximately 6:30 p.m. at the aforesaid location plaintiff herein was unlawfully stopped, detained and injured by and through the negligent and improper use of holds, maneuvers, movements and techniques and thereafter arrested and imprisoned by defendants, POLICE OFFICER SCOTT CARLEY – Shield No. 29078, SERGEANT KEITH HOCKADAY – Shield No. 986, POLICE OFFICER KEVIN ULRICH – Shield No. 16881, POLICE OFFICER AKIL GUY – Shield No. 04945 and POLICE OFFICERS “JOHN DOE 1-8” first names “JOHN” and last names “DOE” being fictitious and unknown at the present time.

34. That, on or about May 7, 2015 at approximately 6:30 p.m., plaintiff herein was unlawfully arrested and imprisoned by defendants herein at the aforesaid location.

35. That on or about May 7, 2015 at approximately 6:30 p.m. plaintiff herein remained unlawfully arrested and imprisoned thereat and was thereafter transported to the Seventy-Fifth (75th) Precinct of the New York Police Department located at 1000 Sutter Avenue, Brooklyn, NY, in the County of Kings, City and State of New York by defendants herein.

36. That, plaintiff herein remained unlawfully arrested and imprisoned thereat by defendants herein until on or about May 8, 2015 at approximately 11:00 a.m.

37. That, on or about May 8, 2015 at approximately 11:00 a.m. plaintiff herein was transported from the aforesaid location to the Kings County Central Booking Facility located at 120 Schermerhorn Street in the County of Kings, City and State of New York where he remained unlawfully arrested and imprisoned and was thereafter unlawfully charged and maliciously prosecuted by defendants herein.

38. That, on or about May 12, 2015 at approximately 2:00 a.m. from the custody of defendants herein but remained unlawfully charged and maliciously prosecuted by defendants herein.

39. That, plaintiff herein remained unlawfully charged and maliciously prosecuted by defendants herein until on or about September 28, 2015 when all charges were dismissed in plaintiff favor.

AS AND FOR A FIRST CAUSE OF ACTION

40. Plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs "1" through "39" as if the same had been fully set forth herein.

41. That, at the aforesaid times and places, defendants, POLICE OFFICER SCOTT CARLEY – Shield No. 29078, SERGEANT KEITH HOCKADAY – Shield No. 986, POLICE OFFICER KEVIN ULRICH – Shield No. 16881, POLICE OFFICER AKIL GUY – Shield No. 04945 and POLICE OFFICERS "JOHN DOE 1-8" first names "JOHN" and last names "DOE" being fictitious and unknown at the present time, seriously and severely injured plaintiff herein.

42. That, defendants, CITY OF NEW YORK and NEW YORK POLICE

DEPARTMENT, by its agents, servants and employees were careless and negligent in permitting plaintiff herein to sustain serious and severe injuries and in failing to exercise the necessary amount of care and caution reasonable under the circumstances to prevent this foreseeable occurrence.

43. That, plaintiff's injuries were due solely to the careless, negligent and reckless conduct on the part of defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, without any negligence on the part of plaintiff herein contributing thereto.

44. That, defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, negligently disregarded their duty to protect plaintiff herein; negligently failed to prevent plaintiff herein from being seriously and severely injured; negligently failed to prevent its agents, servants and/or employees from using improper holds, maneuvers, movements and techniques against plaintiff herein; negligently took no action to stop the use of said improper holds, maneuvers, movements and techniques on plaintiff herein and by reason of the foregoing inflicted serious injuries upon plaintiff herein; negligently failed to provide adequate safety and security so as to protect plaintiff herein; negligently failed to provide adequate safeguards and protection so that plaintiff herein would not be subject to the use of said improper holds, maneuvers, movements and techniques without provocation or knowledge that plaintiff herein posed a danger or threat; and negligently failed to take all reasonable and necessary precautions to prevent the occurrence herein.

45. That, the occurrence herein was occasioned solely and wholly as a result of the negligence of the defendants herein in their ownership, operation, maintenance, control and supervision of the aforesaid premises, facilities, agents, servants and

employees thereat; and in their negligent performance and execution of its police, enforcement and investigational duties.

46. That, as a result of the aforesaid occurrence, plaintiff herein suffered serious, severe physical, personal and emotional injuries, medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS FOR A SECOND CAUSE OF ACTION

47. Plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs "1" through "46" as if the same had been fully set forth herein.

48. That, at the aforesaid times and places, defendant officers, POLICE OFFICER SCOTT CARLEY – Shield No. 29078, SERGEANT KEITH HOCKADAY – Shield No. 986, POLICE OFFICER KEVIN ULRICH – Shield No. 16881, POLICE OFFICER AKIL GUY – Shield No. 04945 and POLICE OFFICERS "JOHN DOE 1-8" first names "JOHN" and last names "DOE" being fictitious and unknown at the present time, seriously and severely injured plaintiff herein.

49. That, defendants, POLICE OFFICER SCOTT CARLEY – Shield No. 29078, SERGEANT KEITH HOCKADAY – Shield No. 986, POLICE OFFICER KEVIN ULRICH – Shield No. 16881, POLICE OFFICER AKIL GUY – Shield No. 04945 and POLICE OFFICERS "JOHN DOE 1-8" first names "JOHN" and last names "DOE" being fictitious and unknown at the present time, carelessly, and negligently injured plaintiff herein and failed to exercise the necessary amount of care and caution which a reasonable person would have exercised to prevent this foreseeable occurrence.

50. That, plaintiff's injuries were due solely to the careless, negligent and

reckless conduct on the part of defendants, POLICE OFFICER SCOTT CARLEY – Shield No. 29078, SERGEANT KEITH HOCKADAY – Shield No. 986, POLICE OFFICER KEVIN ULRICH – Shield No. 16881, POLICE OFFICER AKIL GUY – Shield No. 04945 and POLICE OFFICERS “JOHN DOE 1-8” first names “JOHN” and last names “DOE” being fictitious and unknown at the present time, without any negligence on the part of plaintiff herein contributing thereto.

51. That, defendants, POLICE OFFICER SCOTT CARLEY – Shield No. 29078, SERGEANT KEITH HOCKADAY – Shield No. 986, POLICE OFFICER KEVIN ULRICH – Shield No. 16881, POLICE OFFICER AKIL GUY – Shield No. 04945 and POLICE OFFICERS “JOHN DOE 1-8” first names “JOHN” and last names “DOE” being fictitious and unknown at the present time, disregarded their duty to protect plaintiff herein; negligently used improper holds, maneuvers, movements and techniques on plaintiff herein and by reason thereof inflicted serious injuries upon plaintiff herein; failed to prevent plaintiff herein from being subjected to the negligent use of improper holds, maneuvers, movements and techniques; negligently took no action to stop the use of said improper holds, maneuvers, movements and techniques on plaintiff herein and by reason of the foregoing inflicted serious injuries upon plaintiff herein; and negligently, carelessly and recklessly performed and executed their police, enforcement and investigational duties.

52. That, the occurrence herein was occasioned solely and wholly as a result of the negligence of the defendants, POLICE OFFICER SCOTT CARLEY – Shield No. 29078, SERGEANT KEITH HOCKADAY – Shield No. 986, POLICE OFFICER KEVIN ULRICH – Shield No. 16881, POLICE OFFICER AKIL GUY – Shield No. 04945 and POLICE OFFICERS “JOHN DOE 1-8” first names “JOHN” and last names “DOE” being

fictitious and unknown at the present time, in the performance and execution of their police, enforcement and investigational duties.

53. By virtue of the aforesaid, plaintiff herein was caused to sustain serious and severe personal injuries and incur medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A THIRD CAUSE OF ACTION

54. That, plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs "1" through "53" as if the same had been fully set forth herein.

55. That, defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, were negligent in the hiring, supervision, training and retention of defendants, POLICE OFFICER SCOTT CARLEY – Shield No. 29078, SERGEANT KEITH HOCKADAY – Shield No. 986, POLICE OFFICER KEVIN ULRICH – Shield No. 16881, POLICE OFFICER AKIL GUY – Shield No. 04945 and POLICE OFFICERS "JOHN DOE 1-8" first names "JOHN" and last names "DOE" being fictitious and unknown at the present time, who caused plaintiff herein to incur serious and severe personal injuries.

56. That, defendants herein knew or should have known that, prior to, at and subsequent to the time when defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, engaged defendants, POLICE OFFICER SCOTT CARLEY – Shield No. 29078, SERGEANT KEITH HOCKADAY – Shield No. 986, POLICE OFFICER KEVIN ULRICH – Shield No. 16881, POLICE OFFICER AKIL GUY – Shield No. 04945 and POLICE OFFICERS "JOHN DOE 1-8" first names "JOHN" and last names "DOE" being fictitious and unknown at the present time, that they were persons of incompetence and

indifference; that they had previously used improper holds, maneuvers, movements and techniques on persons within their care and custody and thereby inflicted serious injuries thereupon; had previously used excessive force against other individuals without just cause and provocation; and were known by general reputation to be incompetent and indifferent.

57. That, defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, failed and neglected to make any, or appropriate, inquiries with respect to the competence, temperament and character of their employees the defendants, POLICE OFFICER SCOTT CARLEY – Shield No. 29078, SERGEANT KEITH HOCKADAY – Shield No. 986, POLICE OFFICER KEVIN ULRICH – Shield No. 16881, POLICE OFFICER AKIL GUY – Shield No. 04945 and POLICE OFFICERS “JOHN DOE 1-8” first names “JOHN” and last names “DOE” being fictitious and unknown at the present time, when these defendant correction officers were employed and engaged by defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT.

58. That, the occurrence herein was occasioned solely and wholly as a result of the negligence of the defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, in the hiring, supervision, training and retention of defendants, POLICE OFFICER SCOTT CARLEY – Shield No. 29078, SERGEANT KEITH HOCKADAY – Shield No. 986, POLICE OFFICER KEVIN ULRICH – Shield No. 16881, POLICE OFFICER AKIL GUY – Shield No. 04945 and POLICE OFFICERS “JOHN DOE 1-8” first names “JOHN” and last names “DOE” being fictitious and unknown at the present time.

59. That, by virtue of the aforesaid, plaintiff herein suffered serious and severe personal and emotional injuries and out-of-pocket expenses all to his damage in a sum of

money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION

60. Plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs "1" through "60" as if the same had been fully set forth herein.

61. That, on or about May 7, 2015 at approximately 6:30 p.m. and continuing thereafter, defendants, POLICE OFFICER SCOTT CARLEY – Shield No. 29078, SERGEANT KEITH HOCKADAY – Shield No. 986, POLICE OFFICER KEVIN ULRICH – Shield No. 16881, POLICE OFFICER AKIL GUY – Shield No. 04945 and POLICE OFFICERS "JOHN DOE 1-8" first names "JOHN" and last names "DOE" being fictitious and unknown at the present time, attacked, assaulted, beat, battered and used excessive force on plaintiff herein, without cause or provocation.

62. That, defendants, POLICE OFFICER SCOTT CARLEY – Shield No. 29078, SERGEANT KEITH HOCKADAY – Shield No. 986, POLICE OFFICER KEVIN ULRICH – Shield No. 16881, POLICE OFFICER AKIL GUY – Shield No. 04945 and POLICE OFFICERS "JOHN DOE 1-8" first names "JOHN" and last names "DOE" being fictitious and unknown at the present time, failed to protect plaintiff herein and intentionally threatened, attacked, assaulted, beat, battered, used excessive force and inflicted the aforesaid injuries plaintiff herein.

63. By virtue of the aforesaid, plaintiff herein was caused to sustain serious and severe personal injuries and incur medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A FIFTH CAUSE OF ACTION

64. Plaintiff herein, repeats, reiterates and re-alleges each and every allegation

as set forth in paragraphs "1" through "63" as if the same had been fully set forth herein.

65. That, at the aforesaid times and places defendants, POLICE OFFICER SCOTT CARLEY – Shield No. 29078, SERGEANT KEITH HOCKADAY – Shield No. 986, POLICE OFFICER KEVIN ULRICH – Shield No. 16881, POLICE OFFICER AKIL GUY – Shield No. 04945 and POLICE OFFICERS "JOHN DOE 1-8" first names "JOHN" and last names "DOE" being fictitious and unknown at the present time, failed to protect plaintiff herein and unjustly, intentionally, unlawfully and falsely arrested plaintiff herein or caused plaintiff herein to be, become and remain falsely arrested.

66. That, defendants, POLICE OFFICER SCOTT CARLEY – Shield No. 29078, SERGEANT KEITH HOCKADAY – Shield No. 986, POLICE OFFICER KEVIN ULRICH – Shield No. 16881, POLICE OFFICER AKIL GUY – Shield No. 04945 and POLICE OFFICERS "JOHN DOE 1-8" first names "JOHN" and last names "DOE" being fictitious and unknown at the present time, intentionally confined plaintiff; that, plaintiff herein was aware of the confinement; plaintiff herein did not consent to the confinement; and said confinement was not otherwise privileged.

67. By virtue of the aforesaid, plaintiff herein was caused to sustain serious and severe personal injuries and incur medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A SIXTH CAUSE OF ACTION

68. Plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs "1" through "67" as if the same had been fully set forth herein.

69. That, at the aforesaid times and places defendants, POLICE OFFICER

SCOTT CARLEY – Shield No. 29078, SERGEANT KEITH HOCKADAY – Shield No. 986, POLICE OFFICER KEVIN ULRICH – Shield No. 16881, POLICE OFFICER AKIL GUY – Shield No. 04945 and POLICE OFFICERS “JOHN DOE 1-8” first names “JOHN” and last names “DOE” being fictitious and unknown at the present time, failed to protect plaintiff herein and unjustly, intentionally, unlawfully and falsely imprisoned plaintiff herein or caused plaintiff herein to be, become and remain falsely imprisoned.

70. That, defendants, POLICE OFFICER SCOTT CARLEY – Shield No. 29078, SERGEANT KEITH HOCKADAY – Shield No. 986, POLICE OFFICER KEVIN ULRICH – Shield No. 16881, POLICE OFFICER AKIL GUY – Shield No. 04945 and POLICE OFFICERS “JOHN DOE 1-8” first names “JOHN” and last names “DOE” being fictitious and unknown at the present time, intended to confine plaintiff herein; plaintiff herein was conscious of the confinement; plaintiff herein did not consent to the confinement; and said confinement was not otherwise privileged.

71. By virtue of the aforesaid, plaintiff herein was caused to sustain serious and severe personal injuries and incur medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A SEVENTH CAUSE OF ACTION

72. Plaintiffs herein repeat, reiterate and re-allege each and every allegation as set forth in paragraphs “1” through “71” as if the same had been fully set forth herein.

73. That, at the aforesaid times and places plaintiff herein was maliciously prosecuted by defendants, who under the facts available did not have an objective, good faith belief that the plaintiff was involved in any criminal acts, guilty of any wrong-doing or

posed a danger.

74. That, defendants herein caused criminal proceedings to be commenced against the plaintiff herein; that said criminal proceedings were thereafter terminated in favor of the infant plaintiff herein; that, the criminal proceedings lacked probable cause; and that, the criminal proceedings were brought out of actual malice.

75. By virtue of the aforesaid, the plaintiff herein was caused to sustain serious and severe personal injuries and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR AN EIGHTH CAUSE OF ACTION

76. Plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs "1" through "75" as if the same had been fully set forth herein.

77. That, at the aforementioned times and places, plaintiff herein was seized, struck, assaulted, threatened, beaten, battered and subject to the use of excessive force, falsely arrested and imprisoned and maliciously prosecuted by defendants, POLICE OFFICER SCOTT CARLEY – Shield No. 29078, SERGEANT KEITH HOCKADAY – Shield No. 986, POLICE OFFICER KEVIN ULRICH – Shield No. 16881, POLICE OFFICER AKIL GUY – Shield No. 04945 and POLICE OFFICERS "JOHN DOE 1-8" first names "JOHN" and last names "DOE" being fictitious and unknown at the present time, without just cause or provocation.

78. That, defendants, POLICE OFFICER SCOTT CARLEY – Shield No. 29078, SERGEANT KEITH HOCKADAY – Shield No. 986, POLICE OFFICER KEVIN ULRICH – Shield No. 16881, POLICE OFFICER AKIL GUY – Shield No. 04945 and POLICE OFFICERS "JOHN DOE 1-8" first names "JOHN" and last names "DOE" being fictitious

and unknown at the present time, used their position and power which was clearly unlawful and unjust in light of the circumstances existing at the time.

79. That, the improper seizing, striking, assault, threatening, beating, battering, use of excessive force, false arrest and imprisonment and malicious prosecution of plaintiff herein by defendants, POLICE OFFICER SCOTT CARLEY – Shield No. 29078, SERGEANT KEITH HOCKADAY – Shield No. 986, POLICE OFFICER KEVIN ULRICH – Shield No. 16881, POLICE OFFICER AKIL GUY – Shield No. 04945 and POLICE OFFICERS “JOHN DOE 1-8” first names “JOHN” and last names “DOE” being fictitious and unknown at the present time, violated plaintiff’s civil rights as afforded under the Constitutions and laws of the United States and the State of New York.

80. That, the acts of defendants, POLICE OFFICER SCOTT CARLEY – Shield No. 29078, SERGEANT KEITH HOCKADAY – Shield No. 986, POLICE OFFICER KEVIN ULRICH – Shield No. 16881, POLICE OFFICER AKIL GUY – Shield No. 04945 and POLICE OFFICERS “JOHN DOE 1-8” first names “JOHN” and last names “DOE” being fictitious and unknown at the present time, were done under the color of law and under the color of authority to be executed justly by defendants herein.

81. That, the failure of defendants, POLICE OFFICER SCOTT CARLEY – Shield No. 29078, SERGEANT KEITH HOCKADAY – Shield No. 986, POLICE OFFICER KEVIN ULRICH – Shield No. 16881, POLICE OFFICER AKIL GUY – Shield No. 04945 and POLICE OFFICERS “JOHN DOE 1-8” first names “JOHN” and last names “DOE” being fictitious and unknown at the present time, in the exercise of their functions and their failure to enforce the laws of the United States and of the City and State of New York were carried out willfully, wantonly, maliciously and with such reckless disregard for the

consequences so as to display a conscious disregard for the dangers of harm and injury to the citizens of the City of New York which include plaintiff herein.

82. That, the seizing, attack, assault, beating, battery, use of excessive force, false arrest and imprisonment and malicious prosecution on plaintiff herein by defendants, POLICE OFFICER JAMES F. RUDDY – Badge No. 20583, POLICE OFFICER SCOTT CARLEY – Shield No. 29078, SERGEANT KEITH HOCKADAY – Shield No. 986, POLICE OFFICER KEVIN ULRICH – Shield No. 16881, POLICE OFFICER AKIL GUY – Shield No. 04945 and POLICE OFFICERS “JOHN DOE 1-8” first names “JOHN” and last names “DOE” being fictitious and unknown at the present time, violated plaintiff’s rights under the Fourth Amendment of the United States Constitution to be free from unreasonable searches and seizures; the Fifth Amendment of the United States Constitution protecting against the deprivation of life, liberty or property without due process of law; the Eighth Amendment of the United States Constitution to be free from cruel and unusual punishment and the Fourteenth Amendment of the United States Constitution protecting against the deprivation of life, liberty or property without due process of law as well as the civil rights protections afforded to the plaintiff under the Constitution of the State of New York.

83. By virtue of the aforesaid, plaintiff herein was caused to sustain serious and severe personal injuries and incur medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A NINTH CAUSE OF ACTION

84. Plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs “1” through “83” as if the same had been fully set forth herein.

85. That, at the aforementioned times and places, plaintiff herein was seized, struck, assaulted, beaten, battered, subject to the use of excessive force and falsely arrested and imprisoned and maliciously prosecuted by defendants, POLICE OFFICER SCOTT CARLEY – Shield No. 29078, SERGEANT KEITH HOCKADAY – Shield No. 986, POLICE OFFICER KEVIN ULRICH – Shield No. 16881, POLICE OFFICER AKIL GUY – Shield No. 04945 and POLICE OFFICERS “JOHN DOE 1-8” first names “JOHN” and last names “DOE” being fictitious and unknown at the present time, without just cause or provocation.

86. That, defendants, POLICE OFFICER SCOTT CARLEY – Shield No. 29078, SERGEANT KEITH HOCKADAY – Shield No. 986, POLICE OFFICER KEVIN ULRICH – Shield No. 16881, POLICE OFFICER AKIL GUY – Shield No. 04945 and POLICE OFFICERS “JOHN DOE 1-8” first names “JOHN” and last names “DOE” being fictitious and unknown at the present time, used their position and power which was clearly unlawful and unjust in light of the circumstances existing at the time.

87. That, the seizing, attack, assault, threatening, beating, battery, use of excessive, force false arrest and imprisonment and malicious prosecution of plaintiff herein by defendants, POLICE OFFICER SCOTT CARLEY – Shield No. 29078, SERGEANT KEITH HOCKADAY – Shield No. 986, POLICE OFFICER KEVIN ULRICH – Shield No. 16881, POLICE OFFICER AKIL GUY – Shield No. 04945 and POLICE OFFICERS “JOHN DOE 1-8” first names “JOHN” and last names “DOE” being fictitious and unknown at the present time, violated plaintiff’s rights under the Fourth Amendment of the United States Constitution to be free from unreasonable searches and seizures, the Fifth Amendment of the United States Constitution protecting against the deprivation of life, liberty or property

without due process of law, the Eighth Amendment of the United States Constitution to be free from cruel and unusual punishment and the Fourteenth Amendment of the United States Constitution protecting against the deprivation of life, liberty or property without due process of law as well as the civil rights protections afforded to the plaintiff under the Constitution of the State of New York.

88. That, the acts of defendants herein were done under the color of law and under the color of authority to be executed justly by defendants herein.

89. That, the violation of plaintiff's constitutional rights were caused by the implementation of a custom, policy and/or official act of defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT.

90. That, the custom, policy and/or official act of defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, and their failure to enforce the laws of the United States and of the City and State of New York is evidence of the reckless lack of cautious regard for the rights of citizens including plaintiff herein and exhibited a lack of that degree of due care which prudent and reasonable individuals would show in executing the duties of defendants herein.

91. That such acts, customs and/or policies were and are known to the defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, including to the supervisors, decision and policy makers of defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT.

92. That the circumstances alleged herein are similar to the thousands of lawsuits filed and settlements and verdicts reached yearly and the multiple of media coverage exposing incidents identical to those alleged herein.

93. That, the knowledge of these acts, customs and/or policies is demonstrated by defendant, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, own study into its history and said acts, customs and/or policies in the following:

Police Use of Force in New York City: Findings and Recommendations on NYPD's Policies and Practices by the New York City Department of Investigation Office of the Inspector General for the NYPD (October 1, 2015)

94. That, defendants, CITY OF NEW YORK and NEW YORK CITY DEPARTMENT OF CORRECTION, knew of said acts, customs and/or policies and did nothing to prevent and/or created and harbored conditions to permit and allow its correction officers, including the named defendant-officers herein, to implement and carry out such acts, customs and/or policies with impunity and without regard for the rights afforded to all citizens including plaintiff herein.

95. That, the failure of defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, in enforcing the laws of the State of New York and the rights afforded under the Constitution of the United States and its implementation of these known policies, customs and/or practices that led, allowed or permitted the use of excessive force, striking, assault, beating and battering of plaintiff herein, violated plaintiff's civil rights as well as the rights afforded under the Constitutions of the United States and the State of New York and defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, is thereby liable to plaintiff herein under 42 U.S.C. §1983 and the Constitution of the United States.

96. That, as a result of the aforesaid violations of plaintiff herein constitutional rights, plaintiff herein has been damaged in a sum of money which exceeds the monetary jurisdiction of all lower courts.

WHEREFORE, plaintiff herein demands judgment against defendants herein in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a First Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Second Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Third Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Fourth Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Fifth Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Sixth Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Seventh Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for an Eighth Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Ninth Cause of Action, together with interest, costs and disbursements herein, .

Dated: New York, NY
August 1, 2016

Yours, etc.,

NUSSIN S. FOGEL
Attorney for Plaintiff
Office & Post Office Address
299 Broadway, Suite 620
New York, NY 10007
(212) 385-1122

ATTORNEY'S VERIFICATION

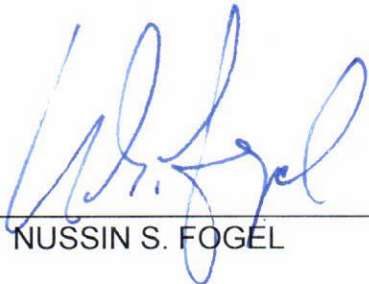
STATE OF NEW YORK)

COUNTY OF NEW YORK)

I, NUSSIN S. FOGEL, the undersigned, an attorney admitted to practice in the Courts of New York State, state that I am NUSSIN S. FOGEL, the attorney of record for the plaintiff herein, in the within action; I have read the foregoing Complaint and know the contents thereof; the same is true to my own knowledge, except as the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by plaintiff, is that plaintiff resides outside of the county where affirmant maintains his office.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows:

Information, records and data contained in affirmant's file and conversations had with the plaintiff herein.



NUSSIN S. FOGEL

I affirm that the foregoing statements are true, under the penalties of perjury

Dated: New York, New York
August 1, 2016